
Central Valley Regional Water Quality Control Board

07 April 2022

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Kingsbury Greens CSD
1932 W. Orangeburg Ave.
Modesto, CA 95350

CERTIFIED MAIL
7020-1810-0002-0569-5574

NOTICE OF APPLICABILITY

**GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC
WASTEWATER TREATMENT SYSTEMS ORDER WQ 2014-0153-DWQ
FOR
KINGSBURY GREENS COMMUNITY SERVICE DISTRICT,
KINGSBURY GREENS CSD WASTEWATER TREATMENT SYSTEM
NEVADA COUNTY**

Kingsbury Greens Community Service District (CSD) submitted a Report of Waste Discharge (RWD) dated 19 March 2021 describing the Kingsbury Greens CSD Wastewater Treatment System (WWTS) in Nevada County. The WWTS provides treatment and disposal service for domestic wastewater generated from the Kingsbury Greens condominium development. The WWTS discharge has been regulated by Waste Discharge Requirements (WDR) Order 95-238 which was adopted on 27 October 1995. Based on information provided in the RWD, the wastewater treatment system and discharge are consistent with the requirements of the State Water Resources Control Board (State Water Board) *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems*, Order WQ 2014-0153-DWQ (General Order). This Notice of Applicability (NOA) serves as formal notice that upon rescission of Order 95-238 at an upcoming Board meeting, the discharge shall be regulated pursuant to the General Order and this NOA. You are hereby assigned Order WQ 2014-0153-DWQ-R5375 for the discharge. A copy of the Waiver is enclosed and also available at the [State Water Boards Adopted Orders webpage, General Order 2014-0153-DWQ](https://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/general_orders/2014-0153-dwq_noas/) (https://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/general_orders/2014-0153-dwq_noas/).

You should familiarize yourself with the entire General Order and its attachments, which describe mandatory discharge and monitoring requirements. The General Order contains operational and reporting requirements by wastewater system type. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) 2014-0153-DWQ-R5375. The Discharger is responsible for all the applicable requirements that exist in the General Order and this NOA.

FACILITY AND DISCHARGE DESCRIPTION

The WWTS is owned and operated by Kingsbury Greens CSD (hereafter “Discharger”) and is located at Kingsbury Circle, Grass Valley, in Nevada County. The facility is located on assessor’s parcel number (APN) 023-560-001-000 and discharge area is located on APN 020-600-040-000, both on Section 13, T15N, R8E, MDB&M.

The Discharger is fully responsible for the operation and maintenance of the WWTS. The Discharger’s location is shown on Attachment A, which is attached hereto and is made part of this NOA by reference. Surrounding land uses include rural residential parcels. Surface water drainage is to South Wolf Creek, which is tributary to Wolf Creek and Bear River.

Kingsbury Greens CSD was formed in 1995 to own and operate the Kingsbury Greens CSD WWTS which had previously been owned and operated by Nevada County Sanitation District No. 1.

Wastewater is generated by the residences in Kingsbury Greens. Domestic wastewater is piped to an extended aeration package treatment plant with a design capacity of 13,000 gallons per day (gpd). Effluent from the package treatment plant is discharged to subsurface via leach fields laid in a common lawn area of Kingsbury Greens and in a fairway of the adjacent Alta Sierra Country Club. Average daily wastewater flow in recent years is approximately 2,600 gpd. The leach fields have 3,635 linear feet of leach lines, as described in the RWD.

There is one groundwater monitoring well at this site used to monitor depth to groundwater.

SITE-SPECIFIC REQUIREMENTS AND EFFLUENT LIMITS

Note that the General Order contains prohibitions and specifications that apply to all wastewater treatment systems as well as those that only apply to specific treatment and/or disposal systems. The specific requirements and effluent limits for your treatment system are summarized below.

The wastewater treatment operator must be certified and familiar with the requirements contained in the General Order, this NOA, and the MRP.

Requirements by Wastewater System Type, Section B of General Order

This section applies in its entirety to the Kingsbury Greens CSD WWTS with the following site-specific requirements.

B.1 All Wastewater Systems

- a. Influent flow limits (Section B.1.a of General Order):

Table 1. Influent flow limits

Treatment Unit	Flow Limit as Monthly Average
Extended aeration package treatment plant	13,000 gpd

- b. Wastewater system setbacks (Section B.1.I, Table 3 of General Order), measured from the nearest high-water limit (bottom of freeboard) in the ponds must be at least as described in Table 2, here.

Table 2. Wastewater system setback requirements

Equipment or Activity	Domestic Well	Flowing Stream	Ephemeral Stream Drainage	Property Line	Lake or Reservoir
Treatment System and Collection Systems	50 ft	50 ft	50 ft	5 ft	200 ft
Leach Field	100 ft	100 ft	50 ft	5 ft	100 ft

B.2 Septic Systems

The WWTS utilizes septic tanks; therefore Section B.2 of General Order applies in its entirety.

B.3 Aerobic Treatment Units

The WWTS utilizes an aerobic treatment unit; therefore Section B.3 of General Order applies in its entirety.

B.6 Subsurface Disposal Systems

The WWTS utilizes a subsurface disposal system; therefore Section B.6 of General Order applies in its entirety.

B.8 Sludge/Solids Disposal

The WWTS includes systems that may accumulate sludge; therefore Section B.8 of the General Order applies in its entirety.

Sections B.4, B.5 and B.7 are not applicable because the WWTS does not use an aerobic treatment unit, an activated sludge system, nor land application.

Effluent Limitations, Section D of General Order

This section applies in its entirety to the Kingsbury Greens CSD WWTS.

- a. The following limits apply to effluent from the package treatment plant outlet, prior to discharge to the leach fields.

Table 3. Effluent Limitations

Constituent	Limit	Units
Biological oxygen demand (BOD)	150	mg/L
Electrical conductivity (EC)	900	µS/cm

b. Effluent Limit Rationale:

Staff evaluated the need for limitations on BOD and TSS based on technology performance and determined that a limit is not required as specified in the General Order.

Staff evaluated the need for a total nitrogen effluent limit using the method contained in the General Order and determined that a nitrogen effluent limit is not required because the monthly average flow will be less than 20,000 gpd.

Technical Report Preparation Requirements, Section E.1 of General Order

The following technical reports shall be submitted as described below:

1. By **1 July 2022**, the Discharger shall submit a *Spill Prevention and Emergency Response Plan* (Response Plan) consistent with the requirements of General Order Provision E.1.a.
2. By **1 July 2022**, the Discharger shall submit a *Sampling and Analysis Plan* consistent with the requirements of General Order Provision E.1.b.
3. **At least 90 days prior** to any removal, drying, treatment, or disposal of sludge for pond maintenance, the Discharger shall submit a *Sludge Management Plan* consistent with the requirements of General Order Provision E.1.c.

SALT AND NITRATE CONTROL PROGRAMS

The Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting. The Basin Plan amendments were conditionally approved by the State Water Board on 16 October 2019 (Resolution 2019-0057) and by the Office of Administrative Law on 15 January 2020 (OAL Matter No. 2019-1203-03).

- a. For nitrate, dischargers that are unable to comply with stringent nitrate requirements will be required to take on alternate compliance approaches that involve providing replacement drinking water to persons whose drinking water is affected by nitrates. Dischargers may comply with the new nitrate program either individually or collectively with other dischargers. The WWTS is not situated in a Nitrate Control Program prioritized Groundwater Basin, so the Discharger is not required to participate in the Nitrate Control Program.
- b. For salinity, dischargers that are unable to comply with stringent salinity requirements will instead need to meet performance-based requirements and participate in a basin-wide effort to develop a long-term salinity strategy for the Central Valley. The Discharger, with **CV-SALTS ID 2176**, has opted to participated in the Prioritization and Optimization (P&O) Study.

As these strategies are implemented, the Central Valley Water Board may find it necessary to modify the requirements of this NOA to ensure the goals of the Salt and Nitrate Control Programs are met. More information regarding this regulatory planning

process can be found on the [Central Valley Water Board CV-SALTS website](https://www.waterboards.ca.gov/centralvalley/water_issues/salinity) (https://www.waterboards.ca.gov/centralvalley/water_issues/salinity).

MONITORING AND REPORTING

Upon rescission of WDRs 95-238, the Discharger shall comply with Monitoring and Reporting Program (MRP) 2014-0153-DWQ-R5375, which is attached hereto and made part of this NOA by reference.

ENFORCEMENT

Please review this NOA carefully to ensure that it completely and accurately reflects the discharge. Discharge of wastes other than those described in this NOA is prohibited.

Prior to allowing changes to the wastewater strength or generation rate, or to the method of waste disposal, you must contact the Central Valley Regional Water Board to determine if submittal of an RWD is required.

Kingsbury Greens CSD will generate the waste subject to the terms and conditions of WQ 2014-0153-DWQ-R5375 and will maintain exclusive control over the discharge. As such, Kingsbury Greens CSD is primarily responsible for compliance with this NOA, MRP, and General Order, with all attachments. Failure to comply with the requirements in the General Order or this NOA could result in an enforcement action as authorized by provisions of the California Water Code.

ANNUAL FEES

The annual fee is based on the discharge's threat to water quality and treatment system complexity rating of 3-C. The fee is due and payable on an annual basis until coverage under the General Order is formally rescinded. Please note that the annual fees are reviewed each year and may change. You must provide written notice if and when the wastewater discharge ceases, so that we can terminate coverage under the General Order and no longer bill you.

DOCUMENT SUBMITTAL

All monitoring reports and other correspondence should be converted to searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to: centralvalleysacramento@waterboards.ca.gov.

To ensure that your submittal is routed to the appropriate staff person, the following information should be included in the body of the email or any documentation submitted to the mailing address for this office:

Facility Name:	Kingsbury Greens CSD, Nevada County
Program:	Non-15 Compliance
Order:	2014-0153-DWQ-R5375
CIWQS Place ID:	235068

Documents that are 50 MB or larger should be transferred to a CD, DVD, or flash drive and mailed to:

Central Valley Regional Water Quality Control Board
ECM Mailroom
11020 Sun Center Drive, Suite 200
Rancho Cordova, CA 95670

Now that the Notice of Applicability has been issued, the Board's Compliance and Enforcement section will take over management of your case. Guy Childs is your point of contact for any questions about the Waiver. If you find it necessary to make a change to your permitted operations, he will direct you to the appropriate Permitting staff. You may contact Guy at (916) 464-4648 or at Guy.Childs@waterboards.ca.gov.

for Patrick Pulupa
Executive Officer

Enclosure: Water Quality Order WQ 2014-0153-DWQ
Attachment A, Site Location Map
Attachment B, Site Plan
Monitoring and Reporting Program 2014-0153-DWQ-R5375

cc w/out enc: Laurel Warddrip, State Water Resources Control Board, Sacramento
Nevada County Environmental Health Department
Guy Childs, Central Valley Water Board, Rancho Cordova